

as to the first, ninth, tenth, and eleventh causes of action, and denied as to the second, third, fourth, fifth, and seventh causes of action, and as to claims against Michel Rehayem. Plaintiff's request to file an amended complaint asserting a cause of action for wrongful foreclosure is denied.

13. 9:00 AM CASE NUMBER: MSC21-00076
CASE NAME: VALDIVA VS. AYALA
***HEARING ON MOTION IN RE: ENTRY OF FINAL JUDGMENT**
FILED BY: VALDIVIA, ADRIANA
TENTATIVE RULING:

The Court continues the hearing on this motion to April 2, 2026 at 9:00 a.m.

14. 9:00 AM CASE NUMBER: N25-2407
CASE NAME: PETITION OF: CITY OF CONCORD
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: CITY OF CONCORD
TENTATIVE RULING:

Before the Court is an amended petition to compel arbitration and to consolidate separate arbitration proceedings ("Amended Petition"), filed by the City of Concord.

For the reasons set forth below, the Court's tentative ruling is to DENY the Amended Petition.

Background

Petitioner the City of Concord ("Petitioner") employs employees represented by the respondent Concord Police Association ("Respondent"). (Amended Petition, ¶ 1.) Respondent represents all full-time police officers and sergeants on all matters pertaining to their wages, hours and conditions of employment. (*Id.*, at ¶ 2.) Officer One is a former Concord police officer and Officer Two is a former Concord police officer. (*Id.*, at ¶¶ 3, 4.) A Memorandum of Understanding ("MOU") governs the relationship of Petitioner and Respondent. (*Id.*, at ¶ 5.)

Officer One was dismissed from his position and through counsel requested arbitration pursuant to MOU section 17.11.4. (Amended Petition, ¶ 8.) Consistent with MOU section 17.11.6, the parties selected an arbitrator ("Arbitrator One") and commenced arbitration in person with Arbitrator One. (*Id.*, at ¶ 9.) Following two days of hearing, Arbitrator One recused himself. (*Ibid.*) The parties made some offers to one another relating to how to proceed subsequent to Arbitrator One's recusal in the arbitration for Officer One but did not come to any agreement. (*Id.*, at ¶¶ 10-11.) Petitioner asserts that it wants to hold a consolidated arbitration for Officer One and Officer Two with a newly selected arbitrator and represents that Officer One is now refusing to arbitrate Officer One's termination. (*Id.*, at ¶ 11.)

Officer Two was dismissed from his position and through counsel requested arbitration pursuant to MOU section 17.11.4. (Amended Petition, ¶ 13.) Consistent with MOU section 17.11.6, the parties selected an arbitrator ("Arbitrator Two") with an arbitration scheduled to take place via videoconference. (*Id.*, at ¶ 14.) Petitioner asserts that Arbitrator Two previously served as an